

1 **SENATE FLOOR VERSION**

2 February 26, 2026

3 **AS AMENDED**

4 SENATE BILL NO. 2007

5 By: Wingard

6 **[pharmacy benefits managers - contractual duties -**
7 **fees - effective date]**

8
9 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

10 SECTION 1. AMENDATORY 59 O.S. 2021, Section 360, as last
11 amended by Section 8, Chapter 300, O.S.L. 2025 (59 O.S. Supp. 2025,
12 Section 360), is amended to read as follows:

13 Section 360. A. The pharmacy benefits manager (PBM) shall,
14 with respect to contracts between a pharmacy benefits manager and a
15 provider, including a pharmacy service administrative organization:

16 1. Include in such contracts the specific sources utilized to
17 determine the maximum allowable cost (MAC) pricing of the pharmacy,
18 update MAC pricing at least every seven (7) calendar days, and
19 establish a process for providers to readily access the MAC list
20 specific to that provider;

21 2. In order to place a drug on the MAC list, ensure that the
22 drug is listed as "A" or "B" rated in the most recent version of the
23 United States Food and Drug Administration (FDA) Approved Drug
24 Products with Therapeutic Equivalence Evaluations, also known as the

1 Orange Book, and the drug is generally available for purchase by
2 pharmacies in the state from national or regional wholesalers and is
3 not obsolete;

4 3. Ensure dispensing fees are not included in the calculation
5 of MAC price reimbursement to pharmacy providers;

6 4. Provide a reasonable administration appeals procedure to
7 allow a provider, a provider's representative and a pharmacy service
8 administrative organization to contest reimbursement amounts within
9 fourteen (14) calendar days of the final adjusted payment date. The
10 pharmacy benefits manager shall not prevent the pharmacy or the
11 pharmacy service administrative organization from filing
12 reimbursement appeals in an electronic batch format. The ~~pharmacy~~
13 ~~benefits manager must~~ PBM shall respond to a provider, a provider's
14 representative and a pharmacy service administrative organization
15 who have contested a reimbursement amount through this procedure
16 within ten (10) calendar days. The ~~pharmacy benefits manager must~~
17 PBM shall respond in an electronic batch format to reimbursement
18 appeals filed in an electronic batch format. The ~~pharmacy benefits~~
19 ~~manager~~ PBM shall not require a pharmacy or pharmacy services
20 administrative organization to log into a system to upload
21 individual claim appeals or to download individual appeal responses.
22 If a price update is warranted, the ~~pharmacy benefits manager~~ PBM
23 shall make the change in the reimbursement amount, permit the
24 dispensing pharmacy to reverse and rebill the claim in question, and

1 make the reimbursement amount change retroactive and effective for
2 all contracted providers;

3 5. If a below-cost reimbursement appeal is denied, the PBM
4 shall provide the reason for the denial, including the National Drug
5 Code (NDC) number from, and the name of, the specific national or
6 regional wholesalers doing business in this state where the drug is
7 currently in stock and available for purchase by the dispensing
8 pharmacy at a price below the PBM's reimbursement price. The PBM
9 shall include documented proof from the specific national or
10 regional wholesalers doing business in this state showing that the
11 drug is currently in stock and available for purchase by the
12 dispensing pharmacy at a price below the PBM's reimbursement price.
13 If the NDC number provided by the ~~pharmacy benefits manager~~ PBM is
14 not available below the acquisition cost obtained from the
15 pharmaceutical wholesaler from whom the dispensing pharmacy
16 purchases the majority of the prescription drugs that are dispensed,
17 the ~~pharmacy benefits manager~~ PBM shall immediately adjust the
18 reimbursement amount, permit the dispensing pharmacy to reverse and
19 rebill the claim in question, and make the reimbursement amount
20 adjustment retroactive and effective for all contracted providers;

21 6. If a PBM increases reimbursement for a drug, medical
22 product, or device as a result of an appeal pursuant to this
23 subsection, including an adjustment required pursuant to paragraph 5
24 of this subsection, and reduces the reimbursement amount for the

1 same drug, medical product, or device, including the same NDC
2 number, within thirty (30) calendar days of the appeal
3 determination, the PBM shall remit an administrative fee not less
4 than One Hundred Dollars (\$100.00) to the affected provider for each
5 occurrence. If such fees are not remitted after ninety (90)
6 calendar days, the administrative fee shall not be less than Five
7 Hundred Dollars (\$500.00) for each occurrence. If such fees are not
8 remitted after one hundred eighty (180) calendar days, the
9 administrative fee shall not be less than One Thousand Dollars
10 (\$1,000.00);

11 7. Any appeal that results in an increase in the reimbursement
12 from the PBM that continues to be below the pharmacy's acquisition
13 cost shall be considered a denial under this section. Any denial of
14 an appeal shall follow the requirements of ~~paragraph~~ paragraphs 5
15 and 6 of this subsection; and

16 ~~7.~~ 8. The PBM shall not require a pharmacy to collect
17 additional monies following a successful below-cost reimbursement
18 appeal from any person or entity other than the PBM who adjudicated
19 the drug claim, including the patient or plan sponsor.

20 B. The reimbursement appeal requirements in this section shall
21 apply to all drugs, medical products, or devices reimbursed
22 according to any payment methodology, including, but not limited to:

23 1. Average acquisition cost, including the National Average
24 Drug Acquisition Cost;

1 2. Average manufacturer price;

2 3. Average wholesale price;

3 4. Brand effective rate or generic effective rate;

4 5. Discount indexing;

5 6. Federal upper limits;

6 7. Wholesale acquisition cost; and

7 8. Any other term that a ~~pharmacy benefits manager~~ PBM or an
8 insurer of a health benefit plan may use to establish reimbursement
9 rates to a pharmacist or pharmacy for pharmacist services.

10 C. The ~~pharmacy benefits manager~~ PBM shall not place a drug on
11 a MAC list, unless there are at least two therapeutically
12 equivalent, multiple-source drugs, generally available for purchase
13 by dispensing retail pharmacies from national or regional
14 wholesalers.

15 D. In the event that a drug is placed on the FDA Drug Shortages
16 Database, ~~pharmacy benefits managers~~ PBMs shall reimburse claims to
17 pharmacies at no less than the wholesale acquisition cost for the
18 specific NDC number being dispensed.

19 E. The ~~pharmacy benefits manager~~ PBM shall not require
20 accreditation or licensing of providers, or any entity licensed or
21 regulated by the State Board of Pharmacy, other than by the State
22 Board of Pharmacy or federal government entity as a condition for
23 participation as a network provider.

1 F. A pharmacy or pharmacist may decline to provide the
2 pharmacist clinical or dispensing services to a patient or pharmacy
3 benefits manager if the pharmacy or pharmacist is to be paid less
4 than the pharmacy's cost for providing the pharmacist clinical or
5 dispensing services.

6 G. The ~~pharmacy benefits manager~~ PBM shall provide a dedicated
7 telephone number, email address and names of the personnel with
8 decision-making authority regarding MAC appeals and pricing.

9 SECTION 2. This act shall become effective November 1, 2026.

10 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
11 February 26, 2026 - DO PASS AS AMENDED
12
13
14
15
16
17
18
19
20
21
22
23
24